

SENATE No. 612

The Commonwealth of Massachusetts

PRESENTED BY:

Edward J. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve providing for an investigation and study of enhancing statewide recycling programs.

PETITION OF:

NAME:

Edward J. Kennedy

DISTRICT/ADDRESS:

First Middlesex

SENATE No. 612

By Mr. Kennedy, a petition (accompanied by resolve, Senate, No. 612) of Edward J. Kennedy that provisions be made for an investigation and study by the Executive Office of Energy and Environmental Affairs to enhance statewide recycling programs. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 510 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve providing for an investigation and study of enhancing statewide recycling programs.

1 **Resolved**, that the Executive Office of Energy and Environmental Affairs shall conduct
2 an investigation and study of the feasibility of enhancing statewide recycling programs and
3 municipal waste management. The study shall identify the fiscal impact, statutory and regulatory
4 barriers, existing laws and regulations, grant programs to facilitate financing, new and existing
5 technologies, and the need for new infrastructure. The study shall also include, but not be limited
6 to, the feasibility of expanding 1) public space and urban center recycling resources, 2) curbside
7 and multi-unit dwelling recycling, and 3) composting initiatives.

8 The office shall also explore the feasibility of a statewide single-stream recycling pilot
9 program. The study shall assess the viability of and costs associated with single-stream diverted
10 material including, but not limited to, a long-term cost-benefit analysis of the value of diverted
11 materials compared to the value of total waste diverted from landfills.

12 Finally, office shall also explore the feasibility of implementing a data-based sunset
13 provision to the Massachusetts bottle deposit law as outlined in Sections 323 through 327,
14 inclusive, of Chapter 94 of the General Laws. The study shall propose standards and regulations
15 to track the general, statewide recycling rate of municipal solid waste in comparison to the
16 recycling rate of containers covered by the bottle deposit program. When the rates of recycling of
17 both covered and non-covered materials are equal, the deposit program shall be considered
18 unnecessary and therefore will be repealed.

19 The secretary shall report to the joint committee on environment, natural resources and
20 agriculture, the joint committee on telecommunications, utilities and energy, and the house and
21 senate committees on ways and means, the finding and recommendations, if any, together with
22 drafts of legislation necessary to carry the recommendations into effect by filing the same with
23 the clerks of the senate and house of representatives on or before December 31, 2025.